

9.	2023-1345082 Garcia vs. FCA US LLC	Motions withdrawn.
10.	2023-1366212 Guadarrama vs. Tegge	Defendant Uber Technologies, Inc.’s motion to compel plaintiffs Anaely Guadarrama and Lam Nguyen to arbitrate their claims in this action against Defendant Uber is granted as to Plaintiff Guadarrama and as to the gateway issue of interpretation/arbitrability as to Plaintiff Nguyen. The court will stay the action as to the remaining defendants pending completion of arbitration. Arbitration Code Civ. Proc. § 1281.2 provides, <i>inter alia</i>: “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, <u>the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists</u>, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement. (c) A party to the arbitration agreement is also a party to a pending court action or special proceeding with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. ...” (Emphasis supplied.) “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and, if any defense to its enforcement is raised, whether it is enforceable. Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement--either fraud in the execution voiding the

agreement, or a statutory defense of waiver or revocation (see § 1281.2, subds. (a), (b))--that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense.” *Hotels Nevada v. L.A. Pacific Center, Inc.* (2006) 144 Cal. App. 4th 754, 761, quoting *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal. 4th 394, 413.

While there is a policy in favor of arbitration and doubts are to be resolved in favor of arbitration, there is no public policy in favor of compelling persons to accept arbitration of controversies they have not agreed to arbitrate. *Id.* at 739; *Mitri v. Arnel Management Co.* (2007) 157 Cal. App. 4th at 1170; *Greenspan v. LADT, LLC.* (2010) 185 Cal. App. 4th 1413, 1437. As a general rule, a party cannot be compelled to arbitrate a dispute that he or she has not agreed to resolve by arbitration. *Buckner v. Tamarin* (2002) 98 Cal. App. 4th 140, 142; *Benasra v. Marciano* (2001) 92 Cal. App. 4th 987, 990 (“The strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration”).

As a result, the first step in determining whether to grant a motion to compel contractual arbitration is to determine whether there was, in fact, an agreement to arbitrate.

Was There an Agreement to Arbitrate?

Defendant Uber has presented an arbitration agreement as part of the Terms and Conditions Plaintiffs agreed to when they created their Uber accounts.

Plaintiff Guardarrama contends that Uber did not give sufficient notice of the Terms and Conditions or that they included an arbitration provision because Uber did not require her to actually read the Terms and Conditions before clicking her acceptance. [Opp. (ROA # 81) at 7.]

Caselaw supports that where there is sufficient notice of Terms and Conditions, use of a website after notice – or actually clicking to proceed – shows mutual assent. *Long v. Provide Commerce, Inc.* (2016) 245 Cal.App.4th 855, 862.

Here, as to the updated Terms and Conditions Uber used a clickwrap, Plaintiffs were provided with a notice of updated Terms and Conditions that was underlined and in bright blue text, all of which set the text apart from other text on the screen and indicated a hyperlink. Then, Plaintiffs were

	required to confirm that they had reviewed the updated Terms and Conditions and agreed to them by clicking on “Confirm.” [Yu Decl., ¶¶ 8-10, 16-19 and Ex. C.] This is sufficient notice to create a binding agreement. <i>See Oberstein v. Live Nation Entertainment, Inc.</i> (9th Cir. 2023) 60 F.4th 505, 515–516 (applying California law). Plaintiffs thus manifested assent to the updated Terms and Conditions and the included arbitration provision. The Court therefore finds that Defendant Uber has shown the existence of an arbitration agreement as to each Plaintiff. For Plaintiff Nguyen, the further question is whether his claims here fall within is arbitration agreement with Uber since he did not order the Uber ride but was the guest of Plaintiff Guardarrama. <i>Is There a Clear and Unmistakable Gateway Delegation as to Interpretation and Arbitrability, as Well as Enforceability?</i> But in their arbitration agreement, the parties delegated gateway questions of interpretation of the scope of the agreement and arbitrability of claims to the arbitrator. The parties agree that the arbitrator ("Arbitrator"), and not any federal, state, or local court or agency, shall have exclusive authority to resolve any disputes relating to the interpretation, applicability, enforceability or formation of this Arbitration Agreement, including any claim that all or any part of this Arbitration Agreement is void or voidable. The Arbitrator shall also be responsible for determining all threshold arbitrability issues, including issues relating to whether the Terms are applicable, unconscionable or illusory and any defense to arbitration, including waiver, delay, laches, or estoppel. If there is a dispute about whether this Arbitration Agreement can be enforced or applies to a dispute, you and Uber agree that the arbitrator will decide that issue. [Yu Exs. D and H, section 2(c) (emphasis added).] As a general rule, under both federal law and California law, courts have found that the arbitrator decides gateway issues,
--	---

		such as arbitrability or scope of the agreement, only where the parties expressly provide for this in the arbitration agreement. <i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514, U.S. 938 944; <i>Parker v. Twentieth Century-Fox Film Corp.</i> (1981) 118 Cal. App. 3d 895, 901. Here, federal law applies as the FAA governs the arbitration agreement based on the terms of that agreement. The FAA applies to arbitration clauses in contracts involving interstate commerce. <i>Rodriguez v. American Technologies, Inc.</i> (2006) 136 Cal. App. 4th 1110, 1117. The burden of proof is on the party claiming the contract involves interstate commerce and that the FAA preempts state law, but where there is no evidence the language of the agreement determines applicable law. <i>Woolls v. Superior Court</i> (2005) 127 Cal. App. 4th 197, 211-14; <i>Valencia v. Smith</i> (2010) 185 Cal. App. 4th 153, 179. Here, the arbitration provision expressly provides for the FAA to govern both interpretation and enforcement of the agreement. [<i>Id.</i>] In short, the arbitration provision in effect clearly states that question of interpretation of the arbitration agreement – such as whether Plaintiff Nguyen’s claims are covered by the agreement when he did not order the ride – are to be decided by the arbitrator. The provision also clearly delegates determination of unconscionability or other defenses to enforcement to the arbitrator. In short, the Court finds that the delegation of arbitrability issues to the arbitrator is clear and unequivocal. As a consequent, under the FAA, it must grant the motion to compel arbitration. <i>Henry Schein, Inc. v. Archer and White Sales, Inc.</i> (2019) 586 U.S. 63, 68 [139 S.Ct. 524, 529, 202 L.Ed.2d 480] Accordingly, the Court grants the motion to compel arbitration for the arbitrator to decide Guardarrama’s claims against Uber and to decide whether Nguyen’s claims against Uber are arbitrable under his arbitration agreement and to proceed as appropriate upon that decision.
11.	2023-1358961 Arora vs. Anaheim Police	Demurrer Motion for Leave to Amend Case Management Conference Defendant City of Garden Grove, erroneously sued as the Garden Grove Police (“Garden Grove”), demurs generally and specially to The First Amended Complaint (“FAC”) filed by